

any land whether described as churchyard, glebe or otherwise, connected with any such church or manse; and other expressions have the like meaning as in the principal Act.

19. This Act may be cited as the Church of Scotland (Property and Endowments) Amendment Act, 1933, and the principal Act and this Act may be cited as the Church of Scotland (Property and Endowments) Acts, 1925 and 1933.

CHAPTER 45.

An Act to provide for regulating the catching, landing, and sale of sea-fish, for the constitution of a Sea-fish Commission, and for purposes connected with the matters aforesaid.

[28th July 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this section, the Board of Trade, after consultation with the appropriate Ministers, may by order regulate the landing in the United Kingdom of sea-fish which have not been both—

Regulation of landing of foreign-caught sea-fish.

(a) taken by British fishing-boats registered in the United Kingdom, the Isle of Man or any of the Channel Islands; and

(b) brought to land in the United Kingdom without having been previously landed outside the United Kingdom;

and, without prejudice to the generality of the power conferred by the foregoing provisions of this section, an order under this section may determine for any such period as may be specified in the order—

(i) the descriptions of such sea-fish as aforesaid which may be landed in the United Kingdom;

(ii) the quantity of such sea-fish, or of any description thereof, which may be so landed:

Provided that the landing of sea-fish taken by a British fishing-boat registered in the Isle of Man or any of the Channel Islands shall not be exempt from the operation of an order under this section unless both the master and the second hand are British subjects.

(2) Any order under this section may contain such provisions as appear to the Board of Trade, after consultation with the appropriate Ministers, to be necessary for securing the due operation and enforcement of the scheme of regulation contained in the order.

(3) No order regulating the landing of sea-fish shall be made under this section, unless orders made under the next three following sections are in force.

(4) After the end of the period of three years from the commencement of this Act, an order under this section regulating the landing of sea-fish shall not be made unless it appears to the Board of Trade, after consultation with the appropriate Ministers and after consideration of any report of the Sea-fish Commission constituted under this Act, that there have been, or are being, taken all such steps (if any) as are practicable and necessary for the efficient reorganisation of that branch of the sea-fishing industry of the United Kingdom or of that branch of the fish-curing industry in the United Kingdom, as the case may be, in whose interests the order is proposed to be made.

(5) Any order regulating the landing of sea-fish which is made under this section before the end of the period of three years from the commencement of this Act shall, if not previously revoked, cease to have effect at the end of that period unless each House of Parliament has passed a resolution approving the continuance in force of the order.

(6) In deciding whether or not to make an order under this section, and in settling the terms of any such order, the Board of Trade shall, among other considerations, have regard to the interests of consumers of the sea-fish to which the order relates (including persons who purchase such sea-fish for the purpose of subjecting them to any treatment or process of manufacture) and to the effect which the regulation of the landing of such sea-fish in the United Kingdom is likely to have upon commercial relations between the United Kingdom and other

countries; and the Board shall not make such an order unless they are satisfied that it is not at variance with any treaty, convention or agreement for the time being in force between His Majesty and any foreign Power, or between His Majesty's Government in the United Kingdom and the government of any other country.

(7) Any expenses incurred under this section by the Board of Trade for the purpose of regulating the landing of sea-fish in the United Kingdom shall be defrayed out of moneys provided by Parliament.

2.—(1) The appropriate Ministers, after consultation with the Board of Trade, may by order prohibit, for any such period as may be specified in the order, the landing in the United Kingdom of sea-fish caught in any such waters as may be so specified, being waters situate to the northward of a line drawn along the parallel of sixty-eight degrees of north latitude between the east coast of Greenland and the west coast of Norway, or to the eastward of the fifteenth meridian of east longitude.

Prohibition
of landing
of sea-fish
caught
in certain
areas during
certain
seasons.

(2) Sea-fish landed in contravention of an order under this section shall be treated as if they were goods enumerated and described in the table of prohibitions and restrictions inwards contained in section forty-two of the Customs Consolidation Act, 1876, and the enactments relating to customs shall apply accordingly:

39 & 40 Vict.
c. 36.

Provided that no steps shall be taken under the said enactments for the purposes of this section by any officer of Customs and Excise, except at the request of an officer of the Ministry of Agriculture and Fisheries, the Fishery Board for Scotland or the Ministry of Commerce for Northern Ireland, as the case may be.

(3) Any British sea-fishery officer may serve on the master of any vessel a notice in writing under the hand of the officer requiring the master to make, on each occasion when any sea-fish are about to be landed in the United Kingdom from that vessel during any period specified in an order in force under this section, a written declaration that those sea-fish are not sea-fish the landing of which is prohibited by the order, and to deliver the declaration, before any of the sea-fish are landed, to such person, or at such place, in the port of landing as may be specified in the notice:

Provided that a notice under this subsection shall not be taken to require the making or delivery of any declaration in respect of the landing of any sea-fish after the end of the period of six months from the date on which the notice is served.

(4) Where any sea-fish are brought to land in the United Kingdom in any vessel, any British sea-fishery officer may, at any time before the vessel next puts out to sea, request the master to make, in respect of any of those sea-fish which have been, or are being, or are about to be, landed from the vessel during a period specified in an order in force under this section, a written declaration that the sea-fish in question are not sea-fish the landing of which is prohibited by the order, and to deliver the declaration to the officer or to such person, or at such place, in the port of landing as he may designate.

Nothing in this subsection shall be taken to affect the operation of the last foregoing subsection.

(5) If the master of any vessel makes for the purposes of this section a declaration which is to his knowledge false in any material particular, he shall be liable on summary conviction to imprisonment for a term not exceeding three months or to a fine not exceeding fifty pounds or to both such imprisonment and fine, and if the master of any vessel fails to make, in respect of any sea-fish, a declaration in accordance with the requirements of a notice duly served on him under this section or in accordance with a request duly made under this section by a British sea-fishery officer, as the case may be, the said sea-fish shall be presumed until the contrary is proved to be sea-fish the landing of which is prohibited under this section.

(6) A notice under subsection (3) of this section relating to any vessel may be addressed to "The Master" of the vessel (identifying it by name or otherwise), and shall be deemed to be duly served if it is delivered or sent by post to, or to the agent of, the owner or the charterer (if any) of the vessel, together with a written request that it be transmitted to the master, and, if the notice is served by being so delivered or sent as aforesaid, it shall be deemed to be served on the master of the vessel for the time being and on every other person who at any material time thereafter is the master of the vessel.

3.—(1) The appropriate Ministers may make an order for securing that the nets carried in any British fishing-boat registered in the United Kingdom for the purpose of catching sea-fish shall be constructed in such manner, and have a mesh of at least such size, as may be prescribed by the order, and an order under this section may prescribe different modes of construction and different minimum sizes of mesh for fishing for different descriptions of sea-fish, for different methods of fishing, for fishing in different areas and for fishing during different periods :

Construc-
tion, and
size of
mesh, of nets
carried in
British sea-
fishing
boats.

Provided that no order under this section shall affect the carrying of any nets for the purpose of fishing only in waters within a distance of three nautical miles from the coast of any part of the United Kingdom, measured from low-water mark of ordinary spring tides.

(2) An order under this section prescribing minimum sizes of mesh may also prescribe the manner in which those sizes are to be measured, and may, in the case of any class of nets, prescribe different sizes for the nets when in different conditions.

(3) If an order under this section is contravened in the case of any fishing-boat, the master, the owner and the charterer (if any) shall each be liable on summary conviction to imprisonment for a term not exceeding three months, or to a fine not exceeding fifty pounds, or to both such imprisonment and fine, and the court by whom the offender is convicted may order the forfeiture of the net in respect of which the contravention occurred. Provided that in any proceedings taken by virtue of this subsection in the case of any fishing-boat it shall be a good defence to prove that the net to which the proceedings relate was in the possession of the owner, charterer, or master of the fishing-boat before the first day of August, nineteen hundred and thirty-three.

(4) Any British sea-fishery officer may seize any net in respect of which a contravention of an order under this section has been, or is being, committed, and an order under this section may confer on British sea-fishery officers of any specified class such of the powers conferred on British sea-fishery officers by section twelve of the Sea Fisheries Act, 1883, as the appropriate

46 & 47 Vict.
c. 22.

Ministers consider necessary for the purpose of the enforcement of the order, and section fourteen of that Act (which provides for the protection of sea-fishery officers and for the punishment of persons obstructing such officers) shall apply for the purposes of this subsection and of any order under this section as it applies for the purposes of that Act.

57 & 58 Vict.
c. 60. (5) Section six hundred and eighty-four of the Merchant Shipping Act, 1894, (which relates to the jurisdiction of courts) shall apply for the purposes of this section as it applies for the purposes of that Act.

(6) Any restrictions imposed by an order under this section shall be in addition to, and not in substitution for, any restrictions imposed by or under any other Act, and nothing in this section shall affect any power conferred by any Act to regulate sea-fishing.

(7) In this section the expression "fishing-boat" does not include any vessel used for catching fish otherwise than for profit.

(8) His Majesty may by Order in Council direct—

(a) that, subject to such exceptions, modifications, and adaptations, if any, as may be specified in the order, the foregoing provisions of this section shall apply in relation to British fishing-boats registered in the Isle of Man or any of the Channel Islands as they apply in relation to British fishing-boats registered in the United Kingdom;

(b) that, subject as aforesaid, the said provisions shall extend to the Isle of Man or to any of the Channel Islands.

Minimum
sizes of
sea-fish
which may
be sold.

4.—(1) No person shall, in Great Britain, sell, expose or offer for sale, or have in his possession for the purpose of sale, any sea-fish of a smaller size than such size as may be prescribed by an order made by the Minister of Agriculture and Fisheries and the Secretary of State for Scotland, and an order under this section may prescribe different minimum sizes in relation to different descriptions of sea-fish.

(2) Every person who contravenes this section shall, for each offence, be liable on summary conviction to a fine not exceeding fifty pounds.

(3) Any of the following officers, that is to say :—

- (a) any officer authorised by the Minister of Agriculture and Fisheries or the Fishery Board for Scotland;
- (b) any officer of police;
- (c) any officer of a market authority acting within the limits of any market which that authority has power to regulate;
- (d) any officer authorised by the Fishmongers' Company and acting within the City of London;

may seize any sea-fish which are sold, or exposed or offered for sale, by any person in contravention of this section, or which any person has in his possession in contravention of this section.

(4) As from the date on which the first order under this section relating to crabs comes into force, paragraph (1) of section eight of the Fisheries (Oysters, Crabs and Lobsters) Act, 1877, and as from the date on which the first order under this section relating to lobsters comes into force, section nine of that Act, shall cease to have effect in Great Britain. 40 & 41 Vict.
c. 42.

5.—(1) There shall be constituted a Sea-fish Commission for the United Kingdom (hereafter in this section referred to as “the Commission”), which shall consist of a chairman and four other members appointed by the appropriate Ministers. Constitution
and func-
tions of the
Sea-fish
Commis-
sion.

(2) The Commission may investigate any matter relating to the catching, landing, storage, treatment, distribution or sale of sea-fish, and shall investigate any such matter as aforesaid which it is required by the appropriate Ministers to investigate, and shall, as soon as may be,—

- (a) report to the appropriate Ministers as to whether any, and if so, what, steps ought, in the opinion of the Commission, to be taken for reorganising any branch of the sea-fishing industry of the United Kingdom or any branch of industry in the United Kingdom which is engaged in dealing with sea-fish; and
- (b) report generally to the appropriate Ministers as to the result of the investigations of the Commission.

For the purpose of reporting to the appropriate Ministers in accordance with paragraph (a) of this subsection, the Commission shall, among other matters, consider the desirability, as regards sea-fish, of schemes similar to those which may be prepared by Agricultural Marketing Reorganisation Commissions under the enactments relating to the marketing of agricultural products.

(3) The appropriate Ministers shall cause the report made by the Commission in accordance with the last foregoing subsection to be presented to Parliament and published as soon as may be in such manner as the said Ministers think best for informing persons concerned :

Provided that no information with respect to any particular undertaking shall be published without the consent of the owner of that undertaking.

(4) The Commission may hold such inquiries as it considers necessary or desirable for the discharge of its functions under this section.

(5) If the Commission reports to the appropriate Ministers—

(a) that it is necessary for the discharge of its functions under this section that it should inquire into a definite matter specified in the report, being a matter relating to the catching, landing, treatment, storage, distribution or sale of sea-fish or of any commodity produced from sea-fish, or to the quantity of sea-fish or of any such commodity which is being, or has been, caught, landed, sold or otherwise dealt with; and

(b) that it has reason to believe that information with respect to that matter is being, or is likely to be withheld;

11 & 12
Geo. 5. c. 7.

the appropriate Ministers may lay before each House of Parliament the draft of an order providing that, in respect of any meeting of the Commission held for the purpose of inquiring into that matter, the Tribunals of Inquiry (Evidence) Act, 1921, shall apply to the Commission as if it were a tribunal established in manner provided by that Act and as if that Act had been applied thereto in manner thereby provided, and

unless either House before the expiration of twenty days on which that House has sat next after the draft is laid before it, resolves that the order be not made, the appropriate Ministers may make an order in terms of the draft to take effect on such date after the expiration of the said period as may be specified in the order :

Provided that where the said Act is applied to the Commission in pursuance of this subsection, the Commission shall, notwithstanding anything in paragraph (a) of section two of that Act, refuse to allow the public, or any portion of the public, to be present while evidence is being given by any witness summoned before the Commission under that Act.

(6) Every person who discloses any information obtained by him in the exercise of any power conferred on the Commission by, or by virtue of, this section, shall be liable, on conviction on indictment, to imprisonment for a term not exceeding two years, or to a fine not exceeding one hundred pounds, or to both such imprisonment and fine, or, on summary conviction, to imprisonment for a term not exceeding three months or to a fine not exceeding fifty pounds, or to both such imprisonment and fine :

Provided that nothing in this subsection shall be taken to prohibit the inclusion of any information in a report made by the Commission to the appropriate Ministers.

(7) Subsections (1) to (4) of section sixteen of the Agricultural Marketing Act, 1931, (which contain incidental provisions as to commissions) shall apply in relation to the Commission as if it were a commission constituted under that Act and as if references in those subsections to the Minister were references to the appropriate Ministers, and any expenses which, by virtue of this subsection, are incurred by the appropriate Ministers in connection with the Commission, shall be defrayed out of moneys provided by Parliament.

21 & 22
Geo. 5. c. 42.

6. The duties of the Market Supply Committee shall include a duty to give to the appropriate Ministers advice in connection with the making and operation of orders under this Act, and, if requested so to do by the

Functions
of Market
Supply
Committee
in relation
to sea-fish.

said Ministers, to give them advice upon any specified matter relating to the supply of sea-fish in the United Kingdom.

Offences
committed
by bodies
corporate.

7. Where any offence under this Act committed by a body corporate is proved to have been committed with the consent or approval of any director, manager, secretary or other officer of the body corporate, he, as well as the body corporate, shall be deemed to be guilty of the offence, and shall be liable to be proceeded against and punished accordingly.

Provisions
as to
orders.

8.—(1) Where any of the provisions of this Act confers a power to make an order, the power shall be construed as including a power, exercisable in the like manner, to vary or revoke the order by a subsequent order.

(2) Every order under this Act, not being an Order in Council, shall, as soon as may be after it is made, be laid before both Houses of Parliament.

(3) As soon as may be after any order, not being an Order in Council, is made under this Act, the authority making the order shall, in such manner as that authority thinks best for informing persons concerned, publish a notice stating that the order has been made, and specifying the place where copies of the order may be purchased.

(4) An order of the Board of Trade under this Act shall cease to have effect on the expiration of a period of twenty-eight days from the date on which it is made, unless, at some time before the expiration of that period, it has been approved by a resolution passed by each House of Parliament, but without prejudice to anything previously done under the order or to the making of a new order.

In reckoning any such period of twenty-eight days as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which the Commons House is adjourned for more than four days.

56 & 57 Vict.
c. 66.

(5) Notwithstanding anything in subsection (4) of section one of the Rules Publication Act, 1893, an order under this Act shall be deemed not to be a statutory rule to which that section applies.

9.—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say:—

Definition
of terms
and exercise
of powers.

“The appropriate Ministers” means the Minister of Agriculture and Fisheries and the Secretaries of State concerned with the sea-fishing industry in Scotland and Northern Ireland respectively:

“British subject” has the same meaning as in the British Nationality and Status of Aliens Act, 1914: 4 & 5 Geo. 5. c. 17.

“Fishing-boat” means a vessel of whatever size, and in whatever way propelled, which is for the time being employed in sea-fishing or in the sea-fishing service:

“The Fishmongers’ Company” means the wardens and commonalty of the Mystery of Fishmongers in the City of London:

“Market authority” means any person having power to regulate a market:

“Master” includes, in relation to any vessel, the person for the time being in command or charge of that vessel:

“Sea-fish” means fish (whether fresh or cured) of any kind found in the sea, and includes lobsters, crabs, shrimps, prawns, oysters, mussels, cockles and any other kind of shell-fish, but does not include—

(a) fish of the salmon species; or

(b) trout which migrate to and from the sea:

“British sea-fishery officer” means any person who is a British sea-fishery officer by virtue of section eleven of the Sea-Fisheries Act, 1883:

“Vessel” has the same meaning as in the Merchant Shipping Act, 1894.

(2) Any order authorised under this Act to be made by the Board of Trade may be made by the President of the Board or, in his absence, by a Secretary of State, and any other thing required or authorised under this Act to be done by or to the Board of Trade may be done

by or to the President of the Board or any person authorised by him in that behalf.

(3) Anything which is required or authorised under this Act to be done by the appropriate Ministers shall be done by those Ministers acting in conjunction.

Short title.

10. This Act may be cited as the Sea-Fishing Industry Act, 1933.

CHAPTER 46.

An Act to amend section sixteen of the Electricity (Supply) Act, 1919, and section twenty-one of the Electricity (Supply) Act, 1922.

[28th July 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Amendment
of 9 & 10
Geo. 5.
c. 100, s. 16.
12 & 13
Geo. 5. c. 46.
19 & 20
Geo. 5. c. 4.

1. Section sixteen of the Electricity (Supply) Act, 1919, as amended by section twenty-one of the Electricity (Supply) Act, 1922, and by section one of the Electricity (Supply) Act, 1928, shall have effect as if for the words
“ or a scheme for the improvement of the supply of
“ electricity in any district has come into operation,
“ or an agreement or arrangement between various
“ authorised undertakers for the rendering of mutual
“ assistance to one another has been entered into”
there were substituted the words “ or an authorised
“ undertaker has ceased to operate or changed the
“ method of operation of the whole or any part of an
“ undertaking in pursuance of—

“ (a) a scheme for the improvement of the supply
“ of electricity in any district; or

“ (b) an agreement or arrangement between various
“ authorised undertakers for the rendering of
“ mutual assistance to one another”;

and as if for the words “ scheme, agreement or arrangement,” there were substituted the words “ cessation of operation or change in the method of operation”; and

as if for the words "on the like conditions as those obtaining with respect to him at the date when the scheme comes into operation or the agreement or arrangement is entered into was available," there were substituted the words "was available on the like conditions as those obtaining with respect to him at the date of such transfer, cessation of operation, or change in the method of operation as is hereinbefore mentioned."

2. Section twenty-one of the Electricity (Supply) Act, 1922, as amended by the Sixth Schedule to the Electricity (Supply) Act, 1926, shall have effect as if for the proviso to subsection (1) of the said section the following were substituted:

Amendment
of 12 & 13
Geo. 5. c. 46,
s. 21.
16 & 17
Geo. 5. c. 51.

"Provided that any question as to whether a transfer was made under or in consequence of the principal Act and any question as to whether any cessation of operation or change in the method of operation was in pursuance of a scheme, agreement or arrangement under or in consequence of the principal Act shall be determined by the Electricity Commissioners."

3. This Act may be cited as the Electricity (Supply) Act, 1933, and shall be construed as one with the Electricity (Supply) Acts, 1882 to 1928, and those Acts and this Act may be cited together as the Electricity (Supply) Acts, 1882 to 1933.

Short title,
construction
and citation.

CHAPTER 47.

An Act to amend the Superannuation (Ecclesiastical Commissioners and Queen Anne's Bounty) Act, 1914. [17th November 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The amount of the gratuity which may be granted under subsection (1) of section two of the

Gratuity in
case of
death.

4 & 5 Geo. 5. Superannuation (Ecclesiastical Commissioners and Queen Anne's Bounty) Act, 1914, to the legal personal representatives of an officer or clerk in the service of the Ecclesiastical Commissioners or the Governors of the Bounty of Queen Anne who dies whilst still employed in such service shall be either the amount specified in that subsection or an amount equal to the amount of the additional allowance which the Ecclesiastical Commissioners or the said Governors might have granted to him if he had retired from their service on the ground of ill-health at the date of his death, whichever may be the greater.

Reckoning
of service
under the
two bodies.

2.—(1) The Ecclesiastical Commissioners and the Governors of the Bounty of Queen Anne may, subject to the approval of the Treasury, from time to time make rules regulating the superannuation allowance, additional allowance, or gratuity which may be granted to or in respect of persons who have served continuously and successively under the two bodies, or who, after service under one of them, is appointed to a joint office under both.

(2) These rules shall provide for granting the same superannuation allowance, additional allowance, or gratuity to or in respect of such person as might have been granted to him if during his whole service he had been in the service from which he ultimately retires, and for the apportionment by the Treasury of the amounts to be paid by each of the two bodies.

Repeal of
s. 5 of the
Act of 1865
as to added
years.
28 & 29 Vict.
c. 68.

3. Section five of the Ecclesiastical Commissioners (Superannuation) Act, 1865, is hereby repealed but nothing in this repeal shall affect the rights of any person who before the date of the passing of this Act has been appointed to an office to which the section applied.

Short title
and con-
struction.

33 & 34 Vict.
c. 89.

4. This Act may be cited as the Superannuation (Ecclesiastical Commissioners and Queen Anne's Bounty) Act, 1933, and shall be read as one with the Ecclesiastical Commissioners (Superannuation) Act, 1865, the Queen Anne's Bounty (Superannuation) Act, 1870, and the Superannuation (Ecclesiastical Commissioners and Queen Anne's Bounty) Act, 1914.
